



A COMMUNITY OF CHOICE

Planning and Development Department

2101 O'Neil Avenue, Suite 202, Cheyenne WY 82001

(Phone) 307-637-6282 (Fax) 307-637-6366

MEMO

To: Honorable Mayor Patrick Collins and Members of the City Council
From: Connor White
Subject: UDC-22-00121 / 3410 Dell Range Blvd Zone Change
Date: May 9, 2022

Background:

The item for consideration is a *Zoning Map Amendment (zone change)*. This is approved by Ordinance.

The proposed Governing Body review schedule is as follows:

- Introduction and Referral 5/9/2022
- Public Services Committee 5/17/2022
- Second reading 5/23/2022
- Public Services Committee 6/7/2022
- Third and final reading 6/13/2022

Planning Commission Recommendation:

The Planning Commission heard this item at their May 2, 2022 meeting and recommended the Governing Body approve this application by a unanimous vote.

The Planning Commission Staff report is attached and has not been changed.

Attachments:

1. Ordinance
2. Planning Commission Staff Report

ORDINANCE NO. _____

ENTITLED: “AN ORDINANCE AMENDING THE OFFICIAL ZONING MAP OF THE CITY OF CHEYENNE CHANGING THE ZONING CLASSIFICATION FROM MUB MIXED-USE BUSINESS EMPHASIS TO CB COMMUNITY BUSINESS FOR LAND LOCATED NORTHEAST OF THE INTERSECTION OF DELL RANGE BOULEVARD AND RIDGE ROAD.”

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That the owner(s) of the property described herein has (have) applied for a zoning map amendment (“zone change”) for said property in accordance with Section 2.2.1, Zoning Map Amendment, of the Cheyenne Unified Development Code (“UDC”).

Section 2. That on May 2, 2022, the City of Cheyenne Planning Commission conducted a public hearing, reviewed the proposed zone change that is the subject of this ordinance, and recommended approval of said zone change.

Section 3. That the Governing Body of the City of Cheyenne finds that the zone change that is the subject of this ordinance meets the criteria specified in Section 2.2.1.d of the UDC.

Section 4. That, in accordance with Section 2.2.1, Zoning Map Amendment, Section 5.1.2, Zoning Districts Established, and Section 5.1.3, Official Zoning Map, of the UDC, the aforementioned application is hereby approved, and the zoning classification of the real property described as: Lot 1, Dell Range Marketplace, 3rd Filing, City of Cheyenne, Laramie County, Wyoming, is hereby changed to CB Community Business.

Section 5. That the City Engineer is hereby authorized and directed to alter and amend the Official Zoning Map as described in Section 5.1.3 of the UDC to comply with the zone change as described in Section 4 above when this ordinance takes effect in accordance with Section 7 below.

Section 6. Sections, paragraphs, sentences, clauses and phrases of this ordinance are severable. If any section, paragraph, sentence, clause, or phrase of this ordinance is declared unconstitutional, such unconstitutionality shall not affect any of the remaining sections, paragraphs, sentences, clauses, and phrases.

Section 7. That this ordinance shall be in full force and effect upon its approval and publication.

FIRST READING: _____

SECOND READING: _____

THIRD AND FINAL READING: _____

PATRICK COLLINS, MAYOR

(SEAL)
ATTEST:

KRISTINA F. JONES, CITY CLERK

publish date: _____



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CITY OF CHEYENNE PLANNING COMMISSION
MAY 2, 2022
STAFF REPORT

FILE: UDC-22-00121: 3410 Dell Range Zone Change

REQUEST: A request to rezone approximately 1.16 Acres of land from MUB Mixed-use Business to CB Community Business.

LOCATION: Northeast corner of Dell Range Blvd and Ridge Road.

AGENT: Don Miller

OWNER: John Preiss, McDonald's

ZONING: MUB Mixed-use Business

FUTURE LAND USE: Mixed-use Commercial

PURPOSE: Rezoning to CB to allow a pole sign and to match existing development standards.

PREPARED BY: Connor White, Planner II - Development



RECOMMENDED MOTION:

Move to **approve** the rezoning of Lot 1, Dell Range Marketplace, 3rd Filing to CB Community Business, noting that the project meets the review criteria for approval.

APPLICABLE CITY CODE SECTION(S) AND PLANS:

- UDC 2.2.1 Zoning Map Amendment
- UDC Article 5
- PlanCheyenne
- Harmony Valley PUD

BACKGROUND:

This zone change application proposes changing the zoning from MUB Mixed-use Business to CB Community Business. The land is currently developed as a McDonalds. The purpose of the proposed zone change is to match the current development pattern and allow a pole sign to be reconstructed.

SURROUNDING LAND USE AND ZONING:

	Future Land Use Designation	Zoning District	Land Use
Subject Site	Mixed-use Commercial	MUB (Mixed-use Business)	Restaurant
North	Mixed-use Commercial	MUB	Commercial
South	Community Business	CB (Community Business)	Automobile Service Station
East	Mixed-use Commercial	MUB	Service Business
West	Mixed-use Residential	CB	Restaurant

ANALYSIS OF APPLICATION CONFORMANCE WITH REVIEW CRITERIA:

Should the Planning Commission wish to recommend approval of the Zoning Map Amendment, the Commission must make the following findings required in UDC 2.2.1.d. A detailed analysis is below:

1) The application is in accordance with the development policies and physical patterns identified in the Comprehensive Plan. (UDC 2.2.1.d.1)

The Future Land Use designation for this property is Mixed-use Commercial. The Mixed-Use Commercial category is intended to promote a range of land uses, with primarily retail, office, light industrial, and livework designed as an “activity center”. Parks, plazas and/or open space should also be part of the core of Mixed-Use Commercial areas.

The existing development is a restaurant which would fall into the commercial portion of the designation. The proposed CB zone better facilitates the type of development on this lot.

The proposed zone change for the subject property **complies** with this review criterion.

- 2) The application is compatible with nearby property, specifically considering existing zoning, the Comprehensive Plan, and any other official plans and policies created under the guidance of that plan for these areas; (UDC 2.2.1.d.2)**

There is CB zoning to the South and to the West of this property. The surrounding area consists of a mix of different commercial and service uses. The CB zone would be compatible with the nearby properties as it is a commercial zone with slightly different standards than the MUB zone.

The proposed zone change for the subject property **complies** with this review criterion.

- 3) The suitability of the subject property for development according to the standards and uses of the existing zoning district, compared to the suitability of the subject property for development according to the standards and uses of the proposed zoning district (UDC 2.2.1.d.3)**

The existing development matches the standards of CB zone better than the MUB zone. The MUB zone would have required the building to be set closer to the streets, whereas the CB zone pushes buildings further from the street. The CB zone is also meant for more vehicle-oriented areas which would be the case for Dell Range Blvd.

The proposed zone change for the subject property **complies** with this review criterion.

- 4) The ability of the subject property and surrounding vicinity to be developed according to the Subdivision Standards in Article 4 considering the proposed zoning (UDC 2.2.1.d.4)**

This is an existing development which met the requirements of Article 4 when constructed under the MUB zone and would have to meet the same requirements with the proposed CB zone. Should the property ever redevelop under the CB zone, it would be able to meet the standards of Article 4.

The proposed zone change for the subject property **complies** with this review criterion.

- 5) The ability of the application to support the Intent and Applicability statements of the proposed zoning district and achieve the Design Objectives of any specific standards. (UDC 2.2.1.d.5)**

The CB District is intended for Retail, Employment, Service and Civic uses that may serve a number of residential neighborhoods or other districts in meeting daily needs, discretionary needs, or other business functions. The district regulations are designed to encourage these uses, while also protecting the abutting and nearby areas. The existing development is a restaurant which meets the intent of the CB zone.

The CB District is applicable in areas where moderate- or large-scale business uses are appropriate, specifically larger Mixed-use Commercial Activity Centers, Community/Regional Activity Centers, or Community Business areas of the Comprehensive Plan.

The existing development better meets the design objectives of the CB zone than the current MUB zone.

The proposed zone change for the subject property **complies** with this review criterion.

6) The ability of all potential future development to meet all applicable standards for development in the proposed zoning district, including other development options if any specific development proposed in association with the application is not executed after approval. (UDC 2.2.1.d.6)

The existing building meets the setback requirements of the CB zone, and should any future development occupy the site, they will also be able to meet the setbacks. By zoning the property CB the property will be more conforming with the UDC.

The proposed zone change for the subject property **complies** with this review criterion.

7) The review and recommendations of other reviewing bodies. (UDC 2.2.1.d.7)

No major concerns were raised by other reviewing bodies.

The proposed zone change for the subject property **complies** with this review criterion.

8) Whether the application will harm the public health, safety, or general welfare. (UDC 2.2.1.d.8)

City staff is satisfied that this proposed zone change would not adversely affect the public health, safety, or general welfare.

The proposed zone change for the subject property **complies** with this review criterion.

CONFORMANCE WITH APPLICABLE PLANS:

The project is located in an area covered by the following plans:

- PlanCheyenne

Conformance with PlanCheyenne is covered by review criterion 1.

STAFF REVIEW:

Through the review process no comments were received.

CONCLUSION:

Staff is satisfied that the application meets the review criteria set forth in UDC 2.2.1.(d). The proposed CB zone brings the existing property closer to compliance with the Unified Development Code.

ALTERNATIVES:

1. Recommend approval of the zoning amendment as submitted by the applicant.
2. Recommend approval of the zoning amendment subject to conditions or modifications (**Staff Recommendation**).
3. Recommend denial of the zoning amendment based on findings of denial. The Planning Commission must conclude that the project does not meet all the review criteria. As part of the motion, findings for denial must be stated.
4. Postpone the zoning amendment until issues identified during the meeting can be resolved.

General Information Regarding Alternatives:

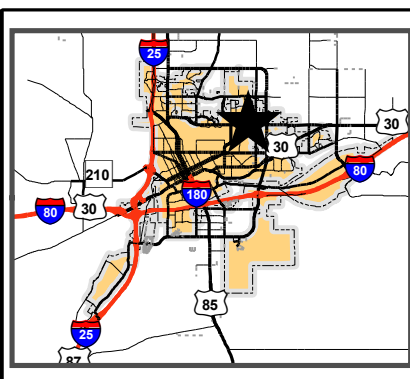
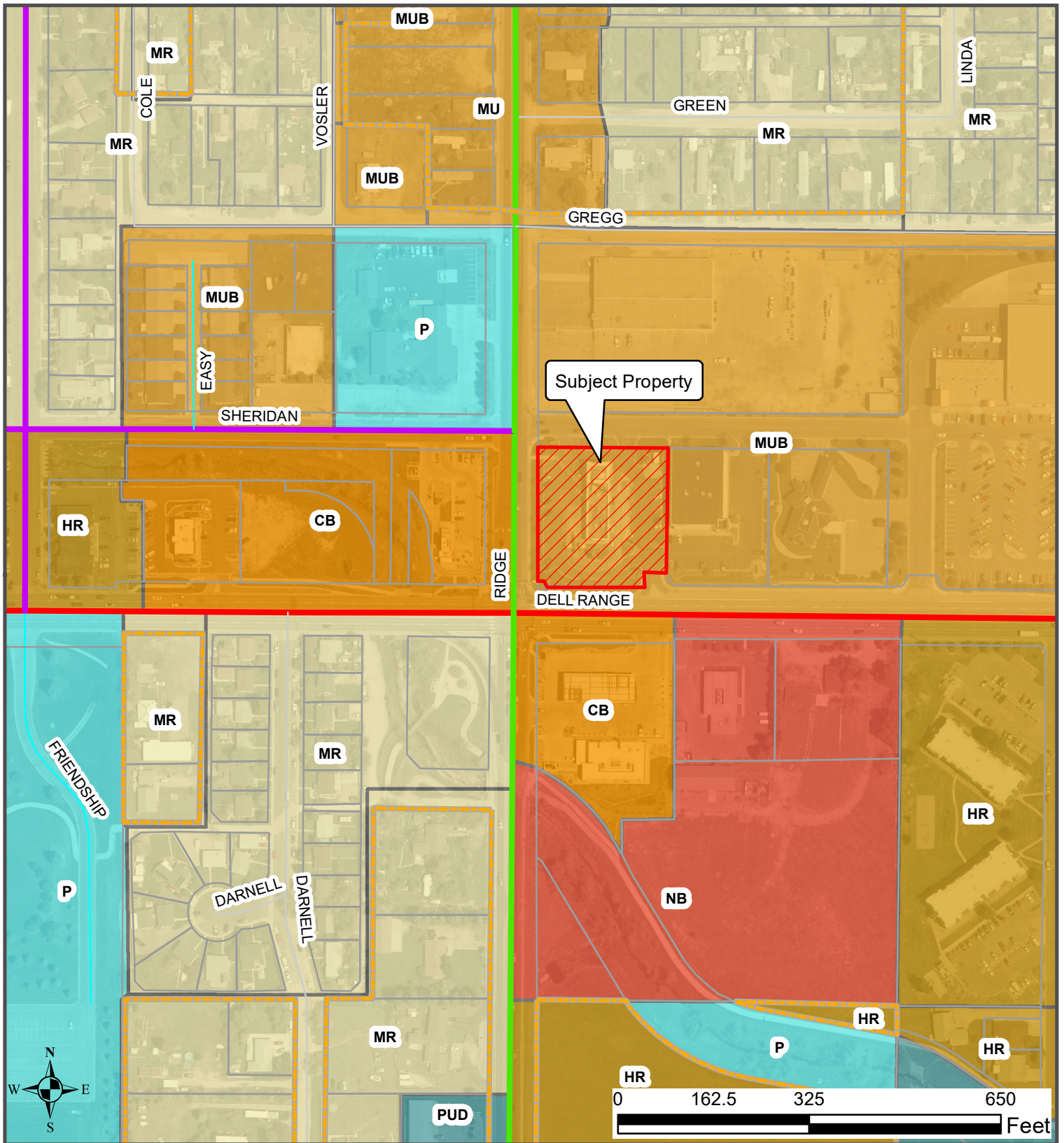
If the Commission acts contrary to staff's recommendation or modifies conditions of approval, the Commission shall cite specific reasons (based on the review criteria) for approval or denial.

STAFF RECOMMENDATION:

Staff recommends approval of the rezoning of the property from MUB to CB.

ATTACHMENTS:

1. Current Zoning Map
2. (Current) Future Land Use Map
3. Zone Change Map

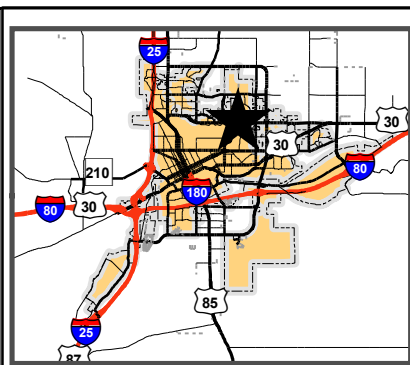
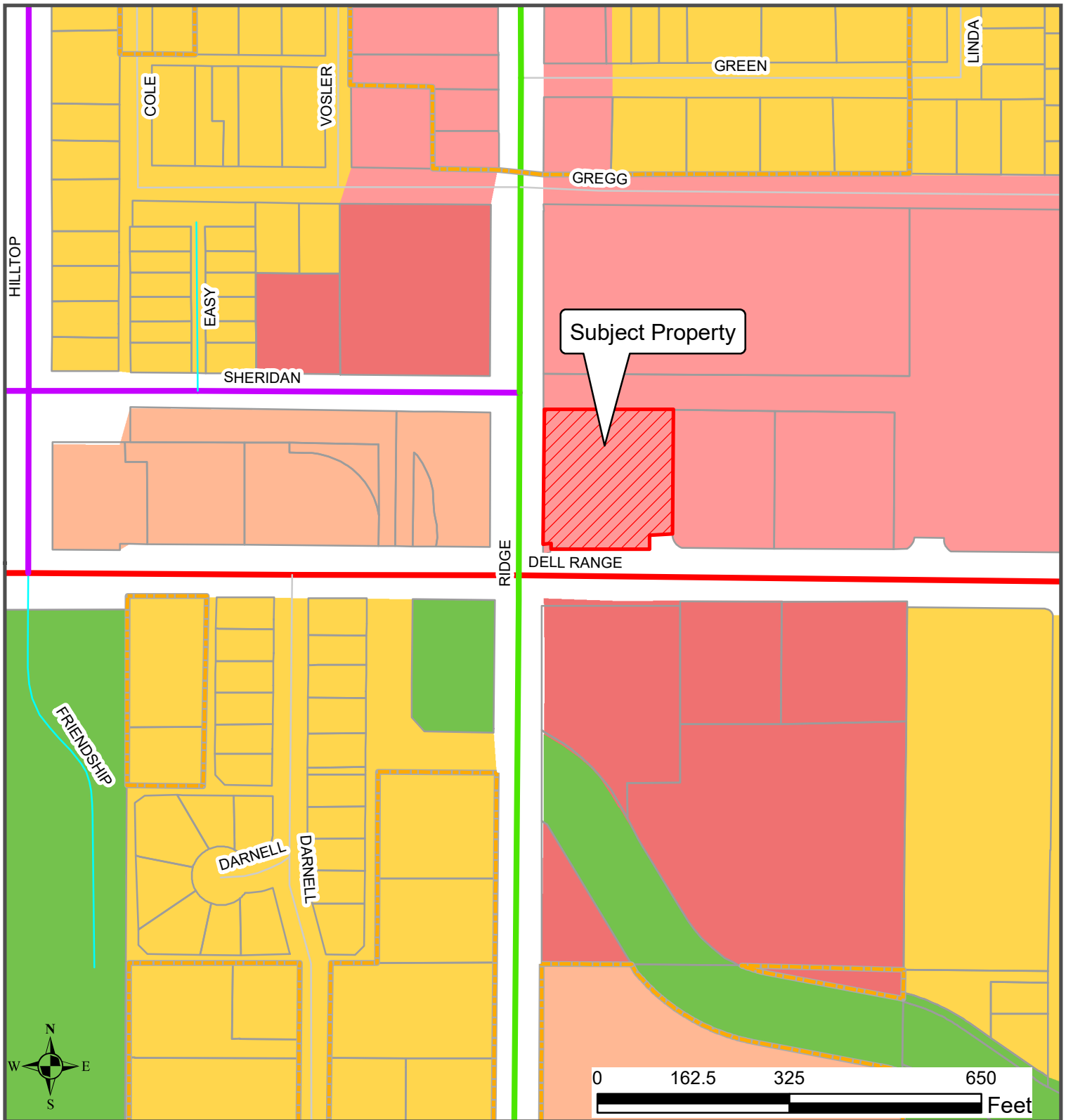


Attachment 1: Zoning Map UDC-22-00121

This map/data is made possible through the Cheyenne and Laramie County Cooperative GIS (CLCCGIS) Program and is for display purposes only. The CLCCGIS invokes its sovereign and governmental immunity in allowing access to or use of this data, makes no warranties as to the validity, and assumes no liability associated with the use or misuse of this information.

Legend

	Nov19_CityLimits		A-1 / Agricultural and Rural Residential
	Interstate		A-2 / Agricultural
	Principal Arterial		AG / City Agricultural
	Minor Arterial		MUR / Mixed Use Residential Emphasis
	Major Collector		CBD / Central Business District
	Minor Collector		CB / Community Business
	Local		NB / Neighborhood Business
	Private		MU / Mixed Use - County
	Platted not built		MUB / Mixed Use Business Emphasis
	HR / High Density Residential		MUE / Mixed Use Employment Emphasis
	MR / Medium Density Residential		HI / Heavy Industrial
	LR / Low Density Residential		LI / Light Industrial
	NR-2 / Neighborhood Residential - Med. Density		P / Public
	NR-3 / Neighborhood Residential - High Density		AD / Airport District
	AR / Agricultural Residential		PUD / Planned Unit Development
			X / Exempt



Attachment 2: Land Use Map UDC-22-00121

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Legend

Nov19_CityLimits	Agricultural/Rural	Industrial
Interstate	Rural Residential	Central Business District
Principal Arterial	Urban Transition Residential	Community Business
Minor Arterial	Urban Residential	Public and Quasi-Public
Major Collector	Mixed-Use Residential	Military/Federal
Minor Collector	Mixed-Use Commercial	Open Space and Parks
Local	Mixed-Use Employment	
Platted not built		
Ownership		



- Scanned Image of: [DELL RANGE MARKETPLACE 03](#)

1 Parcel(s) [Zoom to parcel\(s\)](#)

- Pidn: 14662232303400
- Local #: 13274000000010 iTax
- Account: R0017803
- [Property Detail](#)
- Name: ARCHLAND PROPERTY I LLC C/O MC DONALDS OFFICE
- Mail Addr: 7300 YELLOWSTONE RD
- Mail Addr: CHEYENNE, WY 82009
- St Addr: 3410 DELL RANGE BLVD
- Deed: 1822 CONV 01334
- Location: DELL RANGE MARKETPLACE, 3RD FILING: LOT 1
- Type: Commercial
- Acres: 1.16 acres
- Tax District: 0150

Lat / Lon N: 41.16040°, W: 104.76771°
 NAD83 UTM Zone 13 X: 519488,
 Y: 4556589
 NAD83 Wyoming East (ftUS)
 N: 240845, E: 766017